

Smt.Jayashree W/O Gulappa Pujar vs Sri Gulappa S/O Basappa Pujar on 4 July, 2023

Author: Rajendra Badamikar

Bench: Rajendra Badamikar

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NC: 2023:KHC-D:6612
CRP No. 100114 of 20

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 4TH DAY OF JULY, 2023

BEFORE

THE HON'BLE MR JUSTICE RAJENDRA BADAMIKAR
CIVIL REVISION PETITION NO. 100114 OF 2022

BETWEEN:

SMT. JAYASHREE W/O GULAPPA PUJAR
AGE: 38 YEARS,
OCC: HOUSEHOLD WORK,
R/O: SINGANAHALLI,
TQ AND DIST: DHARWAD-580001.

...PETITIO

(BY SRI. S.H.MITTALKOD, ADVOCATE)

AND:

1. SRI. GULAPPA S/O BASAPPA PUJAR
AGED ABOUT 45 YEARS,
OCC: SERVICE,
R/O: HOOLI ONI,
AMMINABHAVI,
TQ AND DIST: DHARWAD-580001.
2. RACHAYYA S/O CHANNABASAYYA HALLIGERIMATH
AGE: 51 YEARS,

OCC: SEER OF SINGANAHALLIMATH,

Digitally

signed by

YASHAVANT
NARAYANKAR

YASHAVANT
NARAYANKAR

Date:

2023.07.13

11:57:22 -0700

R/O: SINGANAHALLI,

TQ AND DIST: DHARWAD-580001.

...RESPONDEN

(BY SRI. S.Y.NAND00R ADV. FOR SRI. A.C.CHAKALABBI;
SRI. S.B.DODDAGOUDAR FOR R1;
RW-NOTICE SERVED, ADVOCATE)

THIS CRP IS FILED UNDER SEC.115 OF CPC, 1908, PRAYING TO, CALL FOR THE RECORDS, ALLOW THE REVISION PETITION AND SET ASIDE THE ORDER DATED 21.03.2022 PASSED BY THE PRINCIPAL JUDGE FAMILY COURT DHARWAD ON IA III FILED UNDER ORDER 7 RULE 11 READ WITH 151 OF CPC IN MC NO. 58/2020 AND REJECT THE PETITION MC NO. 58/2020 AS BARRED UNDER ORDER 23 RULE 3A CPC IN THE INTEREST OF JUSTICE AND EQUITY.

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THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

This civil revision is filed under Section 115 of Civil Procedure Code, challenging the order passed on IA No.III in MC No.58/2020 wherein the learned Principal Judge, Family Court, Dharwad, has rejected the application filed under Order VII Rule 11 of CPC for rejection of the plaint- petition.

2. Respondent no.1 herein has filed a petition under Section 13(1)(i)&(ia)&(ib) of Hindu Marriage Act against respondent no.1 seeking dissolution of marriage dated 26.05.2005. The petitioner -husband has alleged that respondent-wife having extra marital life with respondent no.2 therein and hence, he sought for decree of divorce. He has also sought a second relief declaring that compromise decree passed in Crl.Misc.No.99/12 and MC No.95/2012 is void and obtained by playing fraud by the petitioner.

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3. The respondent-wife has appeared in the MC petition and filed IA III for rejection of petition on the ground that compromise entered cannot be challenged in this petition on the ground that it is barred by law of limitation.

4. After hearing both the parties, the learned Family Judge has rejected IA.No.III. Against rejection of IA, the wife is before this Court by way of this revision petition.

5. Heard the arguments advanced by the learned counsel for the revision petitioner and learned counsel for respondent and perused the records.

6. The learned counsel for petitioner would contend that the petition itself for setting aside the compromise is not maintainable and he has got a different remedy under the law and hence, the

learned Family Judge has committed an error in entertaining the petition and hence, he would seek for allowing IA III by rejection of the petition itself.

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7. Per contra, the learned counsel for the respondent would support the order passed by the Principal Judge, Family Court, Dharwad.

8. Having heard the arguments advanced and perusing the records, it is evident that the petitioner-husband has filed petition under Section 13(1)(i)&(ia)&(ib) of Hindu Marriage Act against respondent no.1 seeking dissolution of marriage between the husband and revision petitioner herein on the ground of adultery, cruelty and other various grounds. The second relief is sought regarding setting aside the compromise decree on the ground that it is obtained by playing fraud. The main contention of the learned counsel for the revision petitioner is that the compromise decree was passed long back on 10.07.2014 itself and hence, this petition is barred by law of limitation and hence, the petition needs to be rejected. However, the cause of action is required to be decided based on the date on which the allegation of fraud were brought to the notice of the respondent- husband. Apart from that, respondent husband is also NC: 2023:KHC-D:6612 seeking dissolution of marriage by way of divorce on various grounds including cruelty and adultery. Under such circumstances, when there is other prayer, question of rejection of petition under Order VII Rule 11 of CPC does not arise at all. Even if the second relief is held to be barred by law of limitation as per the contention of the learned counsel for revision petitioner, that will not preclude the husband from claiming the divorce decree. Hence, the learned Family Judge has appreciated these facts and circumstances in proper perspective in accordance with law while rejecting the application.

9. The learned counsel for the revision petitioner has placed on a decision of Hon'ble Apex Court in Civil Appeal No.439/2022 reported in 2022 SCC online SC

165. But, the facts and circumstances of the case are entirely different and in the instant case, the husband is not challenging only the compromise decree, but, he is also seeking an independent relief of dissolution of marriage. Hence, the principles enunciated in the above cited decision cannot be made applicable to the facts and NC: 2023:KHC-D:6612 circumstances to the case in hand. As such the revision petition being devoid of any merits needs to be dismissed. Accordingly, I proceed to pass the following:

ORDER The revision petition stands dismissed.

In view of disposal of the petition, pending interlocutory applications, if any, do not survive for consideration and are disposed of accordingly.

Sd/-

JUDGE VMB